Revision Date:
December 1, 2025

Background:
Non-citizens fall under multiple categories that impact Medi-Cal eligibility and the level of benefits they are entitled to.

Purpose:
This section describes the non-citizen categories and provides guidance on determining residency for those who possess a Border Crossing Card or non-immigrant visa.

Policy:
A. Qualified Non-Citizens (QNC)
QNC in the following categories are eligible for full scope Medi-Cal coverage.

Legal Permanent Residents (LPR)
LPR who were admitted into the United States (U.S.) on a permanent basis or for an indefinite period are entitled to full scope Medi-Cal if otherwise eligible. Refer to Medi-Cal Desk Aid 78 for U.S. Citizenship and Immigration Services (USCIS) documentation types.

Battered Non-citizens
Non-citizens who were battered or subjected to extreme cruelty are considered QNC and eligible to full scope Medi-Cal benefits under federal law if they meet each of the four requirements below.

1. The customer has been approved or has a petition pending under one of the Immigration and Nationality Act provisions.

   Note: Pending adjudication for one of the provisions may be verified with a Notice of Prima Facie Case is valid until USCIS has made a determination.

2. The customer, their child, and/or the parent of a non-citizen child applicant were battered or subjected to extreme cruelty.
3. The battered non-citizen has provided verification that there is a substantial connection between the battery and the need for benefits. Acceptable verification includes a sworn statement from the customer that describes any one of the following circumstances:
   - The non-citizen or their child is receiving cash assistance based on battery or extreme cruelty
   - Loss of financial support resulting from the non-citizen and/or their child's separation from the abuser
   - The non-citizen or their child requires medical attention, mental health counseling, or has become disabled because of the battery/cruelty
   - Unwanted pregnancy or children resulting from the abuser's sexual assault or abusive relationship with the non-citizen or their child
   - Needs to replace coverage the customer/child had while living with the abuser

   If the customer presents different facts than those above and claims a connection between the battery and the need for benefits, an elevation must be submitted to the Medi-Cal Program team using the proper channels.

4. The customer must no longer live in the same household as the abuser.

Permanently Residing Under Color of Law (PRUCOL)
Non-citizens in the PRUCOL category are entitled to full scope Medi-Cal benefits if otherwise eligible. Non-citizen Medi-Cal applicants may claim any one of the PRUCOL categories listed on the Statement of Citizenship, Alienage and Immigration Status (MC 13). Refer to Medi-Cal Desk Aid 78 for PRUCOL categories and documentation required.

B. Non-Citizens with Unsatisfactory Immigration Status (UIS)
Non-Citizens with UIS will receive full or restricted benefits based on which of the following categories they fall under:

- Non-citizens with UIS who apply for Medi-Cal on or after January 1, 2026 will receive restricted scope Medi-Cal if otherwise eligible.
- Non-citizens with UIS who were active prior to January 1, 2026 will continue to receive full scope Medi-Cal as long as they do not experience a break in aid.

C. Residency for Border Crossing Card (BCC) or Non-Immigrant Visa Holders
USCIS issues BCC and non-immigrant visas to non-citizens who reside in another country and provide documentation that they intend to enter the United States for only a temporary period.

Border Crossing Card
Due the requirements for receipt of a BCC, possession of a valid and current card is compelling evidence that the holder is not a resident of the state of California. A non-citizen with a BCC may establish residency by presenting persuasive evidence that they have taken steps consistent with their stated intent to live in California permanently, or indefinitely, or have entered the state for employment reasons. The claim of California residency must be evaluated using all available information with the results clearly detailed in a journal entry. If unable to determine California residency, staff must initiate a fraud referral as indicated in Medi-Cal Processing Guide 19 Fraud Prevention.

Non-Immigrant Visa
A valid and current non-immigrant visa, including but not limited to B-1 and B-2 visas, which allows entry for a period of less than one year constitutes strong evidence that the bearer is not a resident of California and is not eligible for any Medi-Cal benefits, unless they present persuasive evidence to the contrary. People with non-immigrant visas are permitted entry into the United States for personal or business purposes. At the port of entry, USCIS frequently stamps the I-94 with permission for the person to stay for a period of six months or less. If after considering all available information, the HSS is unable to determine the customer's claim of California residence, then initiate a fraud referral due to inconsistent or questionable information, that cannot be resolved. Clearly narrate all facts in case comments if it is determined that the customer is not a resident of the state.

Program Impacts:
Automation
Staff must complete the appropriate citizen and non-citizen fields in California Statewide Automated Welfare System (CalSAWS) so customers receive the correct level of benefits.

References:
ACWDL 88-66, 89-34, 89-59, 90-31, 90-67, 93-14, 93-29, 93-49, 95-47, 96-27, 97-42, 98-55, 12-19, 21-13, 22-04, 25-13

Sunset Date:
This policy will be reviewed for continuance November 30, 2028.

Approval for Release:



Alberto Banuelos, Ph.D., Interim Director
Self-Sufficiency Services

Revision Date:
December 1, 2025

Background:
Medi-Cal customers are potentially eligible for either full or restricted scope benefits. The level of benefits they are entitled to is determined by their citizenship or immigration status and whether the verification requirements of their status are met.

Purpose:
This section was updated to reflect the elimination of full scope Medi-Cal for new applicants ages 19 years and older with Unsatisfactory Immigration Status (UIS) who apply on or after January 1, 2026.

Policy:
Full Scope Benefits
Full scope benefits include all medical services covered by the Medi-Cal program. To be eligible for full scope benefits, a customer must be a/an:

- United States (U.S.) citizen who has provided the required citizenship/identity documents or is making a good faith effort to provide
- Non-citizen who was lawfully admitted into the U.S. permanently or for an indefinite period
- Non-citizen who is Permanently Residing Under Color of Law (PRUCOL)
- Pregnant individual regardless of citizenship status (12 months postpartum included)
- Child under 19 regardless of immigration status
- An adult aged 19 and older with UIS who was active prior to January 1, 2026 and has maintained coverage without interruption

90-day Expansion Grace Period
After discontinuance for any reason, including over income and failure to provide the annual renewal, individuals who are 19 and older with UIS active full scope Medi-Cal at the time of discontinuance are entitled to a 90 day grace period to reenroll in full scope if eligibility conditions are met.

Note: Children with UIS and active Medi-Cal who turn 19 years old after January 1, 2026 will continue on full scope coverage as long as they maintain eligibility without interruption.

Permanently Residing Under Color of Law (PRUCOL)
A non-citizen may request full scope benefits and claim PRUCOL on the basis that United States Citizenship and Immigration Services (USCIS) is aware of their presence in the U.S. but does not intend to deport them due to their status or individual circumstances. The customer may claim PRUCOL by checking the last category on the Statement of Citizenship, Alienage and Immigration Status (MC 13).

USCIS Policy:

- USCIS does not recognize PRUCOL as a legal immigration status. Individuals receive no immigration benefits because of a PRUCOL determination.
- USCIS will not deport non-citizens on the basis that they claim PRUCOL or apply for/receive Medi-Cal. These non-citizens may be deported for reasons unrelated to Medi-Cal, such as providing false information to USCIS or having an open warrant for their arrest.
- PRUCOL can be requested for a deceased person.

For applicants who claim the last PRUCOL category on the MC 13:

- Systematic Alien Verification for Entitlements (SAVE) verification or other documents related to immigration status will not be requested.
- Full scope Medi-Cal will be approved, if otherwise eligible.
- PRUCOL status will not be reverified at annual renewal.
- An elevation to Medi-Cal Program is required when conflicting information is reported (e.g. applicant claiming last PRUCOL category with immigration documentation on file). Program will initiate a review by the State Medi-Cal Eligibility Division (MCED) who will evaluate whether the individual is receiving the appropriate level of benefits based on their known immigration status or other relevant factors such as domestic violence, trafficking or other serious crimes.

Restricted Scope Benefits

Restricted scope benefits cover only emergency medical conditions which if not treated, would seriously endanger a customer's health or impair use of limbs, organs, or bodily functions. Customers are not required to have an emergency medical condition to be eligible for restricted scope benefits.

Individuals who apply on or after January 1, 2026 and are unable to establish Satisfactory Immigration Status (SIS) will receive restricted scope Medi-Cal, if they meet all other eligibility requirements.

Presumptive Eligibility

Customers who claim SIS have a Reasonable Opportunity Period (ROP) of 90 days from the date of application (or the time it takes to determine eligibility, whichever is longer) to provide documentation of their immigration status. These individuals will be given full scope Medi-Cal if otherwise eligible. If SIS documentation is not received within the ROP, their level of benefits will be reduced to restricted.

Note: When a customer later provides documentation of SIS that was valid during the months they received restricted Medi-Cal, full scope benefits will be issued retroactively.

Program Impacts:

Automation

Staff must complete the appropriate citizen and non-citizen fields in California Statewide Automated Welfare (CalSAWS) so customers receive the correct level of benefits.

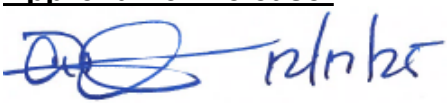
References:

ACWDL 90-31, 90-40, 92-48, 93-14, 07-12, 09-27, 12-19, 16-12, 17-01, 19-23, 21-13, 21-15, 25-13
MEDIL I 17-14

Sunset Date:

This policy will be reviewed for continuance by November 30, 2028

Approval for Release:



Alberto Banuelos, Ph.D., Interim Director
Self-Sufficiency Services

Revision Date:
December 1, 2025

Background:
The Systematic Alien Verification for Entitlements (SAVE) electronic verification process is used to verify immigration status when required for official purposes of a government agency.

Purpose:
This section provides instructions to County staff on using SAVE to verify Satisfactory Immigration Status (SIS). The section was revised for the sunset review; no policies or procedures were changed.

Policy:
When to use SAVE
SAVE must be used to verify the documentation of SIS provided by a Qualified Non-Citizen:
- At application
- When documentation of SIS is provided by a Qualified Non-Citizen (QNC) who was granted full-scope benefits presumptively during a Reasonable Opportunity Period (ROP)
- When there's a change of immigration status
- When a QNC who is receiving restricted benefits provides documentation of SIS

SAVE is not to be used when:
- SIS was electronically verified
- A non-citizen claims SIS but provides documentation that does not support it (e.g. Form I-94) indicates the non-citizen was admitted to the United States (U.S.) for temporary residence)
- A non-citizen is claiming the last Permanently Residing Under Color of Law (PRUCOL) category on the Statement of Citizenship, Alienage and Immigration Status (MC 13)

The approval of full scope benefits must not be delayed pending verification of the customer's immigration status through SAVE. If the SAVE response indicates the documentation is not valid, benefits will be reduced to restricted with timely notice. A potential overpayment may exist for the months that the non-citizen received full scope Medi-Cal. Refer to Medi-Cal Processing Guide 19 for guidance.

SAVE Primary Verification System
Under the SAVE Primary System, CalSAWS will initiate a SAVE abstract using the QNC's A-number. The abstract must be compared to information provided by the customer. If there is a question regarding the identity or immigration status of the customer, a secondary verification must be obtained.
The SAVE abstract will indicate one of these responses from USCIS:
- Asylee
- Conditional Resident
- Deferred Action for Childhood Arrivals (DACA)
- Lawful Permanent Resident (LPR)
- Non-Immigrant
- Parolee
- Refugee
- Temporary Protected Status (TPS)

- U.S. Citizen
- Institute Secondary Verification

All but the final response indicate SIS. Individuals without SIS may receive full scope benefits only if they are under 19 years of age or have applied for and received Medi-Cal prior to January 1, 2026 without a break in aid exceeding the 90-day grace period.

SAVE Secondary Verification System

The SAVE Secondary Verification System is an automated process completed by United States Citizenship and Immigration Services (USCIS). It is required when the SAVE primary response is "Institute Secondary Verification," when there are doubts about the identity/immigration status of the non-citizen, or when discrepancies exist such as the following:

- The document appears counterfeit, altered, or unfamiliar
- The document does not have an A-number but it notes an immigration status
- The A-number is in the 60000000 or 70000000 series, which was never officially issued by USCIS
- The document is a USCIS receipt
- The customer presents a foreign passport containing an I-94 form which is over one year old with the statement "Processed for I-551, Temporary evidence of Lawful Permanent Residence"

Exception for new refugees: A federal waiver allows the county to delay secondary verification of immigration status for newly arrived refugees for 12 months from their arrival date or until the first redetermination, whichever comes first, even if the SAVE primary response indicates "Institute Secondary Verification." If the SAVE database does not contain information on these refugees at the time of application, the A-number must be submitted for primary verification at the annual renewal, or within 12 months of their arrival date. A secondary verification will be initiated at this time, if necessary.

SAVE Secondary and Third-Level System Procedures

Refer to Eligibility Operations Processing Guide (EOPG) - Systematic Alien Verification for Entitlements (SAVE) Secondary Verification for these procedures.

References:

MEPM 4M.IE
ACWDL 88-16, 88-59, 88-66, 88-68, 88-70, 89-14, 90-67, 97-42, 97-51, 98-55, 00-09, 00-28, 04-17, 09-40, 25-13
MEDIL I 17-14

Sunset Date:

This policy will be reviewed for continuance by November 30, 2028.

Approval for Release:



Alberto Banuelos, Ph.D., Interim Director
Self-Sufficiency Services

Statement of Citizenship/Non-Citizen Status	Number	Page
	07.02.04	1 of 2

Revision Date:
December 1, 2025

Background:
United States (U.S.) citizenship and non-citizen status is used to determine the level of ben efits a Medi-Cal applicant is potentially eligible for.

Purpose:
This section is revised for the sunset review; no policies or procedures were changed.

Policy:
Applicants who claim to be U.S. citizens/nationals or to have satisfactory immigration status (SIS) will have their status electronically verified via the California Healthcare Eligibility Enrollment, and Retention System (CalHEERS) through the Federal Data Services Hub. Self-attestation of citizenship is acceptable via telephonic and electronic signature for applications submitted online. Refer to MPG section 04.07.

Medi-Cal eligibility should not be delayed, denied, or discontinued solely for failure to respond to a request for the Statement of Citizenship, Alienage, and Immigration Status form (MC 13).

Procedure:
When Documentation is Not Required
The MC 13 form or any additional citizenship/immigration status documentation is not required when the applicant:

- Claims to be a U.S. citizen/national or to have SIS AND whose status is verified via electronic means, including a California birth record match or the Social Security Administration (SSA) citizenship verification process.
- Is the secondary adult on a case who did not sign the application and the primary applicant attests the individual is a U.S. citizen/national AND their citizenship/immigration status is verified via electronic means, including a California birth record match, or the SSA citizenship verification process.
- The applicant is not claiming U.S. citizenship or SIS

Verbal Attestation
An MC 13 is not required for immigrants who verbally attest to an immigration status and have associated documentation that is sufficient to request verification via electronic means or the Systemic Alien Verification for Entitlement (SAVE) verification process.

The MC 13 form will only be completed:

- At application when it is unclear, or staff are unable to determine from the application or verbal statement if the individual is claiming U.S. citizenship or SIS.
- At renewal or Change in Circumstances (CIC) redetermination when unable to determine if the individual is claiming U.S. citizenship or SIS after an *ex parte* review of all available information.
- When the applicant wants to claim the last category of Permanently Residing Under Color of Law (PRUCOL). Individuals who claim this status are not required to provide additional documentation.

Reasonable Opportunity Period (ROP)
Individuals who claim citizenship or SIS at application will be given a 90-day ROP to provide the MC 13/other verifications during which they will receive full scope Medi-Cal if otherwise eligible.

If verification is …	Then …
submitted that confirms citizenship or SIS	full scope Medi-Cal will continue.
provided or final determination is received that does not prove SIS,	Medi-Cal will be reduced to restricted scope.
not submitted,	

Program Impacts:
None

References:
ACWDL 14-41, 15-32, 16-12 17-01, 18-16, 19-23, 20-17
MEDIL I 14-21

Sunset Date:
This policy will be reviewed for continuance by November 30, 2028

Approval for Release:



Alberto Banuelos, Ph.D., Interim Director
Self-Sufficiency Services